



Malicious Communications Act 1988

1988 CHAPTER 27

An Act to make provision for the punishment of persons who send or deliver letters or other articles for the purpose of causing distress or anxiety. [29th July 1988]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Any person who sends to another person—

(a) a letter or other article which conveys—

- (i) a message which is indecent or grossly offensive;
- (ii) a threat; or
- (iii) information which is false and known or believed to be false by the sender; or

(b) any other article which is, in whole or part, of an indecent or grossly offensive nature,

is guilty of an offence if his purpose, or one of his purposes, in sending it is that it should, so far as falling within paragraph (a) or (b) above, cause distress or anxiety to the recipient or to any other person to whom he intends that it or its contents or nature should be communicated.

(2) A person is not guilty of an offence by virtue of subsection (1)(a)(ii) above if he shows—

- (a) that the threat was used to reinforce a demand which he believed he had reasonable grounds for making; and
- (b) that he believed that the use of the threat was a proper means of reinforcing the demand.

(3) In this section references to sending include references to delivering and to causing to be sent or delivered and “sender” shall be construed accordingly.

Offence of sending letters etc. with intent to cause distress or anxiety.

(4) A person guilty of an offence under this section shall be liable on summary conviction to a fine not exceeding level 4 on the standard scale.

Northern Ireland.
1974 c. 28.

2. An Order in Council under paragraph 1(1)(b) of Schedule 1 to the Northern Ireland Act 1974 (legislation for Northern Ireland in the interim period) which states that it is made only for purposes corresponding to those of this Act—

- (a) shall not be subject to paragraph 1(4) and (5) of that Schedule (affirmative resolution of both Houses of Parliament); but
- (b) shall be subject to annulment in pursuance of a resolution of either House.

Short title,
commencement
and extent.

3.—(1) This Act may be cited as the Malicious Communications Act 1988.

(2) Section 1 above shall not come into force until the end of the period of two months beginning with the day on which this Act is passed.

(3) This Act does not extend to Scotland or, except for section 2, to Northern Ireland.